

CODE OF CRIMINAL PROCEDURE

TITLE 1. CODE OF CRIMINAL PROCEDURE

CHAPTER 65. TERRORIST OFFENDER REGISTRATION PROGRAM

SUBCHAPTER A. GENERAL PROVISIONS

Art. 65.001. DEFINITIONS. In this chapter:

(1) "Authority for campus security" means the authority with primary law enforcement jurisdiction over property under the control of a public or private institution of higher education.

(2) "Centralized registration authority" means a mandatory countywide registration location designated under Article 65.005.

(3) "Criminal justice official" means a chief of police of a municipality, sheriff, constable, county attorney with criminal jurisdiction, district attorney, or criminal district attorney.

(4) "Department" means the Department of Public Safety.

(5) "Extrajurisdictional registrant" means a person who is required to register as a terrorist under the laws of another state with which the department has entered into a reciprocal registration agreement.

(6) "Local law enforcement authority" means the office of the chief of police of a municipality, the office of the sheriff of a county in this state, or a centralized registration authority.

(7) "Officer" means a juvenile probation officer, community supervision and corrections department officer, or parole officer.

(8) "Penal institution" means:

(A) a confinement facility operated by or under contract with any division of the Texas Department of Criminal Justice;

(B) a confinement facility operated by or under contract with the Texas Juvenile Justice Department;

(C) a juvenile secure pre-adjudication or

post-adjudication facility operated by or under a local juvenile probation department; or

(D) a county jail.

(9) "Released" means discharged, paroled, placed in a nonsecure community program for juvenile offenders, or placed on juvenile probation, community supervision, or mandatory supervision.

(10) "Reportable conviction or adjudication" means a conviction or adjudication, including an adjudication of delinquent conduct or deferred adjudication, that, regardless of the pendency of an appeal, is a conviction for or an adjudication for committing:

(A) an offense under Chapter 76, Penal Code;

(B) an offense described by 18 U.S.C. Section 2332b(g)(5);

(C) an offense under 18 U.S.C. Section 2332f, 2332g, 2332h, or 2332i; or

(D) an offense against the Uniform Code of Military Justice, against a state or territory of the United States, or against a foreign country, where the offense contains elements that are substantially similar to the elements of an offense described by this subdivision.

(11) "Terrorist offender" means a person who has a reportable conviction or adjudication.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. 1518), Sec. 1, eff. September 1, 2023.

Art. 65.002. APPLICABILITY OF CHAPTER. (a) This chapter applies only to a reportable conviction or adjudication occurring on or after January 1, 2024.

(b) Except as provided by Subsection (c), the duties imposed on a person required to register under this chapter on the basis of a reportable conviction or adjudication, and the corresponding duties and powers of other entities in relation to the person required to register on the basis of that conviction or adjudication, are not affected by an appeal of the conviction or adjudication.

(c) If a conviction or adjudication that is the basis of a duty to register under this chapter is set aside on appeal by a court or if the person required to register under this chapter receives a pardon, the duties imposed on the person by this chapter and the corresponding duties and powers of other entities in relation to the person are terminated.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. 1518), Sec. 1, eff. September 1, 2023.

Art. 65.003. DETERMINATION REGARDING SUBSTANTIALLY SIMILAR ELEMENTS OF OFFENSE. (a) For purposes of this chapter, the department is responsible for determining whether an offense under the laws of another state or a foreign country, federal law, or the Uniform Code of Military Justice contains elements that are substantially similar to the elements of an offense described by Article 65.001(10)(A), (B), or (C).

(b) The department annually shall provide or make available to each prosecuting attorney's office in this state:

(1) the criteria used in making a determination under Subsection (a); and

(2) any existing record or compilation of offenses under the laws of another state or a foreign country, federal law, and the Uniform Code of Military Justice that the department has already determined to contain elements that are substantially similar to the elements of offenses under the laws of this state.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. 1518), Sec. 1, eff. September 1, 2023.

Art. 65.004. DETERMINATION REGARDING PRIMARY REGISTRATION AUTHORITY. (a) Except as provided by Subsection (b), for each person subject to registration under this chapter, the department shall determine which local law enforcement authority serves as the person's registration authority based on the municipality or county in which the person resides.

(b) If a person resides, works, or attends school in a county with a centralized registration authority, the centralized registration authority serves as the person's registration

authority, regardless of whether the person resides, works, or attends school in any municipality located in that county.

(c) The department shall notify each person subject to registration under this chapter of the person's primary registration authority in a timely manner.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.005. CENTRALIZED REGISTRATION AUTHORITY. (a) The commissioners court of a county may designate the office of the sheriff or the office of a chief of police to serve as a centralized registration authority.

(b) A person subject to this chapter is required to perform the registration and verification requirements of Articles [65.051](#) and [65.056](#) and the change of address requirements of Article [65.054](#) only with respect to the centralized registration authority for the county, regardless of whether the person resides in any municipality located in that county. If the person resides in a municipality, and the local law enforcement authority does not serve as the person's centralized registration authority, the centralized registration authority, not later than the third day after the date the person registers or verifies registration or changes address with that authority, shall provide to the local law enforcement authority notice of the person's registration, verification of registration, or change of address, as applicable, with the centralized registration authority.

(c) This article does not affect a person's duty to register with a secondary terrorist offender registry under Article [65.057](#).
Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.006. CENTRAL DATABASE. (a) The department shall maintain a computerized central database containing the information required for registration under this chapter.

(b) Except as provided by Subsections (d), (e), (g), (h), and (i), the information contained in the database is confidential and not subject to disclosure under Chapter [552](#), Government

Code. Information from the database that is received by an entity under Subsection (d), (e), (g), (h), or (i) is confidential and not subject to disclosure by the entity.

(c) The department shall maintain in the database any photograph of the person that is available, including through the process for obtaining or renewing a personal identification certificate or driver's license under Section 521.103 or 521.272, Transportation Code, and shall update the photographs in the database annually or as photographs otherwise become available.

(d) The department shall provide a licensing authority with notice of any person required to register under this chapter who holds or seeks a license that is issued by the authority.

(e) On the written request of a licensing authority that identifies an individual and states that the individual is an applicant for or a holder of a license issued by the authority, the department shall release any information described by Subsection (a) to the licensing authority.

(f) For the purposes of Subsections (d) and (e):

(1) "License" means a license, certificate, registration, permit, or other authorization that:

(A) is issued by a licensing authority; and

(B) a person must obtain to practice or engage in a particular business, occupation, or profession.

(2) "Licensing authority" means a department, commission, board, office, or other agency of the state or a political subdivision of the state that issues a license.

(g) Not later than the third day after the date on which the applicable information becomes available through the person's registration or verification of registration or under Article 65.056, the department shall send notice of any person required to register under this chapter who is or will be employed by, carrying on a vocation at, or a student at an institution of higher education in this state to:

(1) for an institution in this state:

(A) the authority for campus security; or

(B) if an authority for campus security does not exist, the local law enforcement authority of:

(i) the municipality in which the institution is located; or

(ii) the county in which the institution is located, if the institution is not located in a municipality; or

(2) for an institution in another state, any existing authority for campus security.

(h) On the written request of an institution of higher education described by Subsection (g) that identifies an individual and states that the individual has applied to work or study at the institution, the department shall release any information described by Subsection (a) to the institution.

(i) The department, for law enforcement purposes, shall release all relevant information described by Subsection (a) to a peace officer, a criminal justice official, an employee of a local law enforcement authority, or the attorney general on the request of the applicable person or entity.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.007. INFORMATION PROVIDED ON REQUEST OF LAW ENFORCEMENT PERSONNEL OR PROSECUTOR; ALERT. (a) The department shall establish a procedure by which a peace officer, criminal justice official, or employee of a law enforcement agency who provides the department with a driver's license number, personal identification certificate number, or license plate number is automatically provided information as to whether the person is required to register under this chapter or whether the license plate number is entered in the computerized central database under Article [65.006](#).

(b) The department shall establish an alert flag on the criminal history record information of each person who is required to register under this chapter that would be visible and accessible to a peace officer, criminal justice official, or employee of a law enforcement agency while in the performance of the officer's, official's, or employee's official duties.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.008. GENERAL IMMUNITY. The following persons are immune from liability for good faith conduct under this chapter:

- (1) a criminal justice official;
- (2) an employee or officer of the department, the Texas Department of Criminal Justice, the Texas Juvenile Justice Department, the Board of Pardons and Paroles, or a local law enforcement authority or law enforcement agency;
- (3) an employee or officer of a community supervision and corrections department or a juvenile probation department; and
- (4) a member of the judiciary.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.009. RULEMAKING AUTHORITY. The department, the Texas Department of Criminal Justice, and the Texas Juvenile Justice Department may adopt any rule necessary to implement this chapter.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

SUBCHAPTER B. REGISTRATION AND VERIFICATION REQUIREMENTS; RELATED NOTICE

Art. 65.051. REGISTRATION: GENERAL. (a) A person who is required to register under this chapter as a condition of parole, release to mandatory supervision, or community supervision shall register or, if the person is a person for whom registration is completed under this chapter, verify registration, as provided by Subsection (f), with the local law enforcement authority in any municipality where the person resides or intends to reside for more than seven days. If the person does not reside or intend to reside in a municipality, the person shall register or verify registration in any county where the person resides or intends to reside for more than seven days. The person shall satisfy the requirements of this subsection not later than:

- (1) the seventh day after the person's arrival in the

municipality or county; or

(2) the first date the local law enforcement authority of the municipality or county by policy allows the person to register or verify registration, as applicable.

(b) The department shall provide the Texas Department of Criminal Justice, the Texas Juvenile Justice Department, and each local law enforcement authority, authority for campus security, county jail, and court with a form for registering persons required by this chapter to register.

(c) The registration form shall require:

(1) the person's full name, date of birth, sex, race, height, weight, eye color, hair color, social security number, and driver's license number;

(2) the address at which the person resides or intends to reside or a detailed description of the geographical location at which the person resides or intends to reside;

(3) each alias used by the person and any home, work, or cellular telephone number;

(4) a recent color photograph or an electronic digital image of the person and a complete set of the person's fingerprints;

(5) the type of offense for which the person is required to register, the date of conviction or adjudication, and the punishment received;

(6) an indication as to whether the person is discharged, paroled, or released on juvenile probation, community supervision, or mandatory supervision;

(7) an indication of each license, as defined by Article 65.006, that is held or sought by the person;

(8) an indication as to whether the person is or will be employed by, carrying on a vocation at, or a student at an institution of higher education, and the name and address of that institution;

(9) the vehicle registration information of any vehicle owned by the person, including the make, model, vehicle identification number, color, and license plate number; and

(10) any other information required by the department.

(d) The registration form must contain a description of any

registration duties the person has under this chapter.

(e) Not later than the third day after a person registers, the local law enforcement authority shall send a copy of the registration form to the department and, if the person resides on the campus of a public or private institution of higher education, to any authority for campus security for that institution.

(f) Not later than the seventh day after the date on which the person is released, a person for whom registration is completed under this chapter shall report to the applicable local law enforcement authority to verify the information in the registration form received by the authority under this chapter. The authority shall require the person to produce proof of the person's identity and residence before the authority gives the registration form to the person for verification. If the information in the registration form is complete and accurate, the person shall verify registration by signing the form. If the information is not complete or accurate, the person shall make any necessary additions or corrections before signing the form.

(g) A person who is required to register or verify registration under this chapter shall ensure that the person's registration form is complete and accurate with respect to each piece of information required by the form in accordance with Subsection (c).

(h) If a person subject to registration under this chapter does not move to an intended residence by the end of the seventh day after the date on which the person is released or the date on which the person leaves a previous residence, the person shall:

(1) report to the officer supervising the person by not later than the seventh day after the date the person is released or the date on which the person leaves a previous residence, and provide the officer with the address of the person's temporary residence; and

(2) continue to report to the officer weekly during the time in which the person has not moved to an intended residence and provide the officer with the address of the person's temporary residence.

(i) If the other state has a registration requirement for a

terrorist offender, a person who has a reportable conviction or adjudication, who resides in this state, and who is employed by, carries on a vocation at, or is a student at an institution of higher education in another state shall, not later than the 10th day after the date on which the person begins to work or attend school in the other state, register with the law enforcement authority that is identified by the department as the authority designated by that state to receive registration information. If the person is employed by, carries on a vocation at, or is a student at a public or private institution of higher education in the other state and if an authority for campus security exists at the institution, the person shall also register with that authority not later than the 10th day after the date on which the person begins to work or attend school.

(j) If a person subject to registration under this chapter is released from a penal institution without being released to parole or placed on any other form of supervision, and the person does not move to the address indicated on the registration form as the person's intended residence or does not indicate an address on the registration form, the person shall, not later than the seventh day after the date on which the person is released:

(1) report in person to the local law enforcement authority for the municipality or county, as applicable, in which the person is residing and provide that authority with the address at which the person is residing or, if the person's residence does not have a physical address, a detailed description of the geographical location of the person's residence; and

(2) until the person indicates the person's current address on the registration form or otherwise complies with the requirements of Article 65.054, as appropriate, continue to report, in the manner required by Subdivision (1), to that authority not less than once in each succeeding 30-day period and provide that authority with the address at which the person is residing or, if applicable, a detailed description of the geographical location of the person's residence.

(k) A person required to register under this chapter may not refuse or otherwise fail to provide any information required for the accurate completion of the registration form.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.052. REGISTRATION: EXTRAJURISDICTIONAL REGISTRANTS. (a) An extrajurisdictional registrant is required to comply with the annual verification requirements of Article [65.056](#).

(b) The duty to register for an extrajurisdictional registrant expires on the date the person's duty to register would expire under the laws of the other state or foreign country had the person remained in that state or foreign country, under federal law, or under the Uniform Code of Military Justice, as applicable.
Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.053. PRERELEASE NOTIFICATION. (a) Before a person who will be subject to registration under this chapter is due to be released from a penal institution, an official of the penal institution shall:

(1) inform the person that:

(A) not later than the seventh day after the date on which the person is released or after the date on which the person moves from a previous residence to a new residence in this state, or not later than the first date the applicable local law enforcement authority by policy allows the person to register or verify registration, the person must register or verify registration with the local law enforcement authority in the municipality or county in which the person intends to reside;

(B) not later than the seventh day after the date on which the person is released or the date on which the person moves from a previous residence to a new residence in this state, the person must, if the person has not moved to an intended residence, report to the applicable entity or entities as required by Article [65.051](#) or [65.054](#);

(C) not later than the seventh day before the date on which the person moves to a new residence in this state or another state, the person must report in person to the local law

enforcement authority designated as the person's registration authority and to the officer supervising the person;

(D) not later than the 10th day after the date on which the person arrives in another state in which the person intends to reside, the person must register with the law enforcement agency that is identified by the department as the agency designated in that state to receive registration information, if the other state has a registration requirement;

(E) not later than the 30th day after the date on which the person is released, the person must apply to the department in person for the issuance of an original or renewal driver's license or personal identification certificate and a failure to apply to the department as required by this paragraph results in the automatic revocation of any driver's license or personal identification certificate issued by the department to the person; and

(F) the person must notify appropriate entities of any change in status as described by Article [65.055](#);

(2) require the person to sign a written statement confirming that the person was informed of the person's duties as described by Subdivision (1) or, if the person refuses to sign the statement, certify that the person was so informed;

(3) obtain the address or, if applicable, a detailed description of the geographical location where the person expects to reside on the person's release and other registration information, including a photograph and complete set of fingerprints; and

(4) complete the registration form for the person.

(b) On the seventh day before the date on which a person who will be subject to registration under this chapter is due to be released from a penal institution, or on receipt of notice by a penal institution that a person who will be subject to registration under this chapter is due to be released in less than seven days, an official of the penal institution shall send the person's completed registration form to the department and to:

(1) the applicable local law enforcement authority in the municipality or county in which the person expects to reside in

this state, if the person expects to reside in this state; or

(2) the law enforcement agency that is identified by the department as the agency designated by another state to receive registration information, if the person expects to reside in that other state and that other state has a registration requirement for terrorist offenders.

(c) If a person who is subject to registration under this chapter receives an order deferring adjudication, placing the person on community supervision or juvenile probation, or imposing only a fine, the court pronouncing the order or sentence shall ensure that the prerelease notification and registration requirements are conducted on the day of entering the order or sentencing. If a community supervision and corrections department representative is available in court at the time a court pronounces a sentence of deferred adjudication or community supervision, the representative shall immediately conduct the prerelease notification and registration requirements. In any other case in which the court pronounces a sentence under this subsection, the court shall designate another appropriate individual to conduct the prerelease notification and registration requirements.

(d) If a person who will be subject to registration under this chapter is placed under the supervision of the parole division of the Texas Department of Criminal Justice or a community supervision and corrections department under Section [510.017](#), Government Code, the division or department, as applicable, shall conduct the prerelease notification and registration requirements on the date the person is placed under supervision.

(e) Before a person who will be subject to registration under this chapter is due to be released from a penal institution in this state, an official of the penal institution shall inform the person that:

(1) if the person intends to reside in another state and to work or attend school in this state, the person must, not later than the seventh day after the date on which the person begins to work or attend school or the first date the applicable local law enforcement authority allows the person to register or verify registration, register or verify registration with the local law

enforcement authority in the municipality or county in which the person intends to work or attend school; and

(2) if the person intends to reside in this state and to work or attend school in another state and if the other state has a registration requirement for terrorist offenders, the person must, not later than the 10th day after the date on which the person begins to work or attend school in the other state, register with the law enforcement authority that is identified by the department as the authority designated by that state to receive registration information.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.054. CHANGE OF ADDRESS; LACK OF ADDRESS. (a) If a person required to register under this chapter intends to change address, the person shall, not later than the seventh day before the intended change, report in person to the local law enforcement authority designated as the person's registration authority and the officer supervising the person and provide the authority and the officer with the person's anticipated move date and new address. If a person required to register under this chapter changes address, the person shall, not later than the seventh day after changing the address or the first date the applicable local law enforcement authority allows the person to report, report in person to the local law enforcement authority in the municipality or county in which the person's new residence is located and provide the authority with proof of identity and proof of residence.

(b) Not later than the third day after receiving a report under Subsection (a), the officer supervising the person shall forward the information provided under Subsection (a) to the local law enforcement authority designated as the person's primary registration authority by the department and, if the person intends to move to another municipality or county in this state, to the applicable local law enforcement authority in that municipality or county.

(c) If the person moves to another state that has a registration requirement for terrorist offenders, the person

shall, not later than the 10th day after the date on which the person arrives in the other state, register with the law enforcement agency that is identified by the department as the agency designated by that state to receive registration information.

(d) Not later than the third day after receipt of information under Subsection (a) or (b), whichever is earlier, the local law enforcement authority shall forward the information to the department and, if the person intends to move to another municipality or county in this state, to the applicable local law enforcement authority in that municipality or county.

(e) If a person who reports to a local law enforcement authority under Subsection (a) does not move on or before the anticipated move date or does not move to the new address provided to the authority, the person shall:

(1) not later than the seventh day after the anticipated move date, and not less than weekly after that seventh day, report to the local law enforcement authority designated as the person's primary registration authority by the department and provide an explanation to the authority regarding any changes in the anticipated move date and intended residence; and

(2) report to the officer supervising the person not less than weekly during any period in which the person has not moved to an intended residence.

(f) If the person moves to another municipality or county in this state, the department shall inform the applicable local law enforcement authority in the new area of the person's residence not later than the third day after the date the person moves.

(g) If the person moves to another state, the department shall, immediately on receiving information under Subsection (d):

(1) inform the agency that is designated by the other state to receive registration information, if that state has a registration requirement for terrorist offenders; and

(2) send to the Federal Bureau of Investigation a copy of the person's registration form, including the record of conviction and a complete set of fingerprints.

(h) If a person required to register under this chapter

resides for more than seven days at a location or locations to which a physical address has not been assigned by a governmental entity, the person, not less than once in each 30-day period, shall confirm the person's location or locations by:

(1) reporting to the local law enforcement authority in the municipality where the person resides or, if the person does not reside in a municipality, the local law enforcement authority in the county in which the person resides; and

(2) providing a detailed description of the applicable location or locations.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.055. STATUS REPORT BY SUPERVISING OFFICER OR LOCAL LAW ENFORCEMENT AUTHORITY. (a) If the officer supervising a person subject to registration under this chapter receives information to the effect that the person's status has changed in any manner that affects proper supervision of the person, including a change in the person's name, physical health, job or educational status, including higher educational status, incarceration, or terms of release, the officer shall promptly notify the appropriate local law enforcement authority or authorities of that change. If the person required to register intends to change address, the officer shall notify the local law enforcement authorities designated by Article [65.054](#)(b). Not later than the seventh day after the date the officer receives the relevant information, the officer shall notify the local law enforcement authority of any change in the person's job or educational status in which the person:

(1) becomes employed, begins to carry on a vocation, or becomes a student at a particular institution of higher education; or

(2) terminates the person's status in that capacity.

(b) Not later than the seventh day after the date of the change or the first date the applicable authority by policy allows the person to report, a person subject to registration under this chapter shall report to the local law enforcement authority

designated as the person's registration authority any change in the person's name or job or educational status or if the person is hospitalized for any reason.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.056. LAW ENFORCEMENT VERIFICATION OF REGISTRATION INFORMATION. (a) A person subject to registration under this chapter who has, with respect to an offense described by Article [65.001](#)(10), been convicted two or more times, received an order of deferred adjudication two or more times, or been convicted and received an order of deferred adjudication shall report to the local law enforcement authority designated as the person's registration authority not less than once in each 90-day period following the date the person first registered under this chapter to verify the information in the registration form maintained by the authority for that person. A person subject to registration under this chapter who is not subject to the 90-day reporting requirement described by this subsection shall report to the local law enforcement authority designated as the person's registration authority once each year not earlier than the 30th day before and not later than the 30th day after the anniversary of the person's date of birth to verify the information in the registration form maintained by the authority for that person.

(b) A local law enforcement authority designated as a person's registration authority by the department may direct the person to report to the authority to verify the information in the registration form maintained by the department for that person. The authority may direct the person to report under this subsection once in each 90-day period following the date the person first registered under this chapter, if the person is required to report not less than once in each 90-day period under Subsection (a), or once in each year not earlier than the 30th day before and not later than the 30th day after the anniversary of the person's date of birth, if the person is required to report once each year under Subsection (a). A local law enforcement authority may not direct a person to report to the authority under this subsection if

the person is required to report under Subsection (a) and is in compliance with the reporting requirements of that subsection.

(c) The local law enforcement authority shall require the person to produce proof of the person's identity and residence before the authority gives the registration form to the person for verification. If the information in the registration form is complete and accurate, the person shall verify registration by signing the form. If the information is not complete or not accurate, the person shall make any necessary additions or corrections before signing the form.

(d) A local law enforcement authority designated as a person's primary registration authority by the department may at any time mail a nonforwardable verification form to the last reported address of the person. Not later than the 21st day after receipt of a verification form under this subsection, the person shall:

(1) indicate on the form whether the person still resides at the last reported address or the person's new address;

(2) complete any other information required by the form;

(3) sign the form; and

(4) return the form to the authority.

(e) For purposes of this article, a person receives multiple convictions or orders of deferred adjudication regardless of whether:

(1) the judgments or orders are entered on different dates; or

(2) the offenses for which the person was convicted or placed on deferred adjudication arose out of different criminal transactions.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.057. REGISTRATION OF PERSONS REGULARLY VISITING LOCATION. (a) A person subject to this chapter who on at least three occasions during any month spends more than 48 consecutive hours in a municipality or county in this state, other than the

municipality or county in which the person is registered under this chapter, before the last day of that month shall report that fact to:

(1) the local law enforcement authority of the municipality in which the person is a visitor; or

(2) if the person is a visitor in a location that is not a municipality, the local law enforcement authority of the county in which the person is a visitor.

(b) A person described by Subsection (a) shall provide the local law enforcement authority with:

(1) all information the person is required to provide under Article [65.051](#)(c);

(2) the address of any location in the municipality or county, as appropriate, at which the person was lodged during the month; and

(3) a statement as to whether the person intends to return to the municipality or county during the succeeding month.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.058. REQUIREMENTS RELATING TO DRIVER'S LICENSE OR PERSONAL IDENTIFICATION CERTIFICATE. (a) A person subject to registration under this chapter shall apply to the department in person for the issuance of an original or renewal driver's license under Section [521.272](#), Transportation Code, a personal identification certificate under Section [521.103](#), Transportation Code, or a commercial driver's license or commercial learner's permit under Section [522.033](#), Transportation Code, not later than the 30th day after the date:

(1) the person is released from a penal institution or by a court; or

(2) the department sends written notice to the person of the requirements of this article.

(b) The person shall annually renew in person the driver's license or personal identification certificate until the person's duty to register under this chapter expires.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1,

eff. September 1, 2023.

Art. 65.059. DNA SPECIMEN. A person required to register under this chapter shall comply with a request for a DNA specimen made by a law enforcement agency under Section [411.1473](#), Government Code.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.060. PROHIBITED LOCATION OF RESIDENCE. A person subject to registration under this chapter may not reside on the campus of an institution of higher education unless the institution approves the person to reside on the institution's campus.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

SUBCHAPTER C. EXPIRATION OF DUTY TO REGISTER; OFFENSE

Art. 65.101. EXPIRATION OF DUTY TO REGISTER. The duty to register for a person ends when a judge in a court of competent jurisdiction determines that the person no longer represents a threat to public safety.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

Art. 65.102. FAILURE TO COMPLY WITH REGISTRATION REQUIREMENTS. (a) A person commits an offense if the person is required to register and intentionally or knowingly fails to comply with any requirement of this chapter.

(b) Except as provided by Subsection (c), an offense under this article is a felony of the third degree.

(c) An offense is a felony of the second degree if it is shown at the trial of a person:

(1) for an offense or an attempt to commit an offense under this article that the person has previously been convicted under this article; and

(2) for an offense or an attempt to commit an offense

under this article that the person fraudulently used identifying information in violation of Section [32.51](#), Penal Code, during the commission or attempted commission of the offense.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.

SUBCHAPTER D. REMOVAL OF REGISTRATION INFORMATION

Art. 65.151. REMOVING REGISTRATION INFORMATION WHEN DUTY TO REGISTER EXPIRES. (a) When a person is no longer required to register as a terrorist offender under this chapter, the department shall remove all information about the person from the terrorist offender registry.

(b) The duty to remove information under Subsection (a) arises if the department has received notice from a judge in a court of competent jurisdiction that the judge has determined that the person no longer represents a threat to public safety.

(c) When the department has removed information under Subsection (a), the department shall notify all local law enforcement authorities that have provided registration information to the department about the person of the removal. A local law enforcement authority that receives notice from the department under this subsection shall remove all registration information about the person from its registry.

Added by Acts 2023, 88th Leg., R.S., Ch. 935 (S.B. [1518](#)), Sec. 1, eff. September 1, 2023.